



CHAPTER 53.

An Act to amend the law with respect to customs
in the Isle of Man. [4th August 1939.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows :—

1.—(1) In lieu of the duties of customs payable under section nineteen of the first Act of 1932, there shall, until the first day of August nineteen hundred and forty, be payable on the removal or importation into the Isle of Man of tobacco of the descriptions specified in the first column of the First Schedule to this Act—

Increased
duties on
tobacco.
22 & 23
Geo. 5. c. 16.

- (a) in the case of tobacco not being an Empire product, duties at the rates respectively specified in the second column of that Schedule; and
- (b) in the case of tobacco being an Empire product, duties at the rates respectively specified in the third column of that Schedule.

(2) In this section the expression " Empire product " has the same meaning as in section five of the Act of 1919 as amended by any subsequent enactment, and in the said Schedule the expression " stripped tobacco " means any leaf tobacco of which the leaf is not complete by reason of the removal of the stalk or midrib or of some portion thereof, but tobacco shall not be deemed to be

stripped tobacco solely by reason of its having been subjected to such process of butting as the Commissioners may allow.

(3) This section shall be deemed to have had effect as from the third day of May nineteen hundred and thirty-nine.

Continua-
tion of
certain
annual
duties.

2.—(1) Subject to the provisions of this Act, the duties of customs imposed on goods removed or imported into the Isle of Man, being goods of the descriptions set out in the first column of the following table, by the respective enactments set out in the second column of that table, shall continue to be payable as from the first day of August nineteen hundred and thirty-nine until the first day of August nineteen hundred and forty :—

TABLE.

Description of Goods.		Enactment imposing Duty.
22 & 23 Geo. 5. c. 41.	Ale and Beer - - - -	Section 8 of the second Act of 1932 and section 4 of the Act of 1936.
26 Geo. 5. & 1 Edw. 8. c. 45.	Cocoa - - - -	Section 4 of the Act of 1924.
14 & 15 Geo. 5. c. 24.	Hops and extracts, essences and other similar prepara- tions (other than hop oil) made from hops.	Section 5 of the Act of 1925.
15 & 16 Geo. 5. c. 56.	Hop oil - - - -	Section 3 of the Act of 1929.
20 & 21 Geo. 5. c. 1.	Matches - - - -	Section 1 of the Act of 1933.
23 & 24 Geo. 5. c. 40.	Silk and artificial silk and articles made wholly or in part of silk or artificial silk.	Section 7 of the Act of 1925, as amended by section 8 of the Act of 1926, section 9 of the second Act of 1932, section 4 of the Act of 1933, section 3 of the Act of 1936, and section 3 of the Act of 1937.
16 & 17 Geo. 5. c. 27. 1 Edw. 8. & 1 Geo. 6. c. 64.	Spirits - - - -	Section 2 of the Act of 1930, as amended by section 4 of the Act of 1938.
20 & 21 Geo. 5. c. 42. 1 & 2 Geo. 6. c. 68.	Sweets - - - -	Section 2 of the Act of 1929, as amended by section 3 of the Act of 1933.
	Tea - - - -	Section 5 of the Act of 1938.
17 & 18 Geo. 5. c. 20.	Wines - - - -	Section 1 of the Act of 1927, as amended by section 8 of the Act of 1933.

(2) Where any enactment set out in the second column of the foregoing table confers power on the Governor to make orders varying or repealing the duties of customs payable on the goods referred to in that enactment or imposing a new duty on such goods, the provisions of that enactment relating to the said power shall continue in force until the said first day of August nineteen hundred and forty, and the foregoing provisions of this section shall have effect subject to any orders made in pursuance of any such power (whether before or after the commencement of this Act), which are for the time being in force.

3.—(1) The orders specified in the first column of Part I of the Second Schedule to this Act, being orders made by the Governor under the Acts relating to customs in the Isle of Man, shall have effect subject to the amendments relating to cinematograph film respectively specified in the second column of that Part of that Schedule. Amendment
of duties on
cinemato-
graph film.

(2) The duties of customs payable on cinematograph film removed or imported into the Isle of Man shall be payable subject to and in accordance with the provisions of Part II of the said Schedule.

(3) Subsection (3) of section six of the Act of 1938, in so far as it provides that any exposed cinematograph film within the meaning of the said Part II shall be charged with any duty at a preferential rate, shall cease to have effect.

(4) If an order is made by the Treasury under paragraph 12 of the Third Schedule to the Finance Act, 1939, revoking or varying any provision of that Schedule, any corresponding provision of this section or the Second Schedule to this Act may be varied or revoked accordingly by an order of the Governor : 2 & 3 Geo. 6.
c. 41.

Provided that subsection (6) of section two of the second Act of 1932 (which requires orders of the Governor made under that section to be approved by Tynwald) shall apply to an order made under this subsection as it applies to an order made under that section.

(5) This section shall be deemed to have had effect as from the third day of May nineteen hundred and thirty-nine.

Amendment
of duties on
certain pre-
served
fruits.

4.—(1) The duties of customs payable under section nine of the Act of 1933 in respect of preserved fruits of the descriptions specified in the first column of the Third Schedule to this Act shall be at the rates respectively specified in the second column of that Schedule instead of at the rate specified in the second column of Part I of the Third Schedule to the Act of 1933.

(2) So much of any order of the Governor made before the commencement of this section under subsection (2) of the said section nine as relates to fruit of any such description shall cease to have effect.

(3) This section shall be deemed to have had effect as from the third day of May nineteen hundred and thirty-nine.

Amendment
of duty on
patent
leather.
24 & 25
Geo. 5. c. 46.

5.—(1) The rate of the duty of customs payable under section three of the Act of 1934 (which relates to patent leather) shall be reduced to seven-and-a-half per cent.; and accordingly subsection (1) of that section shall have effect subject to the following amendments—

(a) for the words “fifteen per cent.” where they first occur, there shall be substituted the words “seven-and-a-half per cent.”;

(b) the words “if the aggregate amount of the
“ additional duty and the general ad valorem
“ duty exceeds fifteen per cent. of the value
“ of the goods ” shall cease to have effect.

(2) This section shall be deemed to have had effect as from the third day of May nineteen hundred and thirty-nine.

Short title
and repeal.

6.—(1) This Act may be cited as the *Isle of Man (Customs) Act, 1939.*

(2) As from the third day of May nineteen hundred and thirty-nine, the enactments set out in the Fourth Schedule to this Act are hereby repealed to the extent mentioned in the third column of that Schedule.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

DUTIES ON TOBACCO.

Description of tobacco.	Rate of duty per lb.	
	Not being an Empire product.	Being an Empire product.
	£ s. d.	s. d.
Unmanufactured tobacco, viz :—		
containing 10 lbs. or more of moisture in every 100 lbs. weight thereof—		
unstripped - - - - -	11 6	9 5½
stripped - - - - -	11 6½	9 5½
containing less than 10 lbs. of moisture in every 100 lbs. weight thereof—		
unstripped - - - - -	12 6	10 2½
stripped - - - - -	12 6½	10 3¼
Manufactured tobacco, viz. :—		
cigars - - - - -	1 0 1	16 2¼
cigarettes - - - - -	16 7	13 5¼
Cavendish or Negrohead - - - - -	15 9	12 9½
Cavendish or Negrohead manufactured in bond - - - - -	14 0	11 4½
other manufactured tobacco - - - - -	14 0	11 4½
Snuff—		
containing more than 13 lbs. of moisture in every 100 lbs. weight thereof - -	13 4	10 10½
containing not more than 13 lbs. of moisture in every 100 lbs. weight thereof - -	15 9	12 9½
and so on in proportion for any less quantity.		

Section 3.

SECOND SCHEDULE.

PROVISIONS AS RESPECTS CINEMATOGRAPH FILM.

PART I.

AMENDMENT OF ORDERS.

Order.	Amendment.
The Import Duties (General) (Isle of Man) Order, 1936.	References to the Import Duties (General) Order, 1935, shall be construed as references to that order as amended by para- graphs 1, 4 and 11 of the Third Schedule to the Finance Act, 1939.
The Additional Import Duties (No. 9) (Isle of Man) Order, 1938.	The order shall cease to have effect so far as it relates to cinemato- graph film.
The Import Duties (Exemp- tions) (No. 4) (Isle of Man) Order, 1938.	Paragraph 1 and the Schedule (which relate to certain sound track negatives) shall cease to have effect.

PART II.

PROVISIONS AS RESPECTS CHARGE OF DUTY.

1. In the case of film of a greater width than the standard width of one and three-eighths inches, the customs duty payable shall be increased in proportion to the extent to which the width is greater than the standard width, and in the case of unexposed sensitised cinematograph film of less than the standard width, the customs duty payable shall be decreased in proportion to the extent to which the width is less than the standard width.

2. If, in the case of any exposed cinematograph film, it is shown to the satisfaction of the Commissioners either—

- (a) that the production of the film was organised by persons whose chief or only place of business was in the United Kingdom or the Isle of Man and the producer of the film and all the principal actors and artists employed for the production thereof, except five, or, if the total number of principal actors and artists is less than twenty, not less than three-quarters of the number of actors and artists, were British subjects and domiciled in the United Kingdom or the Isle of Man; or

- (b) that the Board of Trade have certified that the requirements of subsection (3) of section twenty-seven of the Cinematograph Films Act, 1927 (which prescribes what films shall be deemed to be British films for the purposes of that Act) or of subsection (1) of section twenty-five of the Cinematograph Films Act, 1938 (which prescribes what films shall be deemed to be British films for the purpose of registration thereof under Part III of that Act) have been complied with in relation to the film or in relation to any film of which the film forms part;

2ND SCH.
—*cont.*
17 & 18
Geo. 5. c. 29.
1 & 2 Geo. 6.
c. 17.

the duty of customs payable on the film shall be the duty, if any, which would have been payable thereon if it were still unexposed.

In this paragraph the expression "artist" includes the person working the photographic camera or other photographic apparatus by means of which the film is made.

3. Where two or more equal lengths of exposed cinematograph film are removed or imported together and it is shown to the satisfaction of the Commissioners that they all represent the same objects and are intended to be used as a set, each complementary to the others, in the production of a coloured picture, and are not suitable to be used separately, they shall be charged as a set with the duty that would be payable if one length only were being removed or imported.

4. Where in the case of any exposed cinematograph film security is given to the satisfaction of the Commissioners—

- (a) that no duplicate will be made in the United Kingdom or the Isle of Man from the film or from any part thereof or from any duplicate of the film or of any part thereof except for the purpose of preparing a single version adapted for exhibition in the United Kingdom or the Isle of Man; and
- (b) that the film and any duplicate made from the film or from any part thereof will be destroyed or otherwise disposed of to the satisfaction of the Commissioners within such period as they may require;

the duty of customs payable on the film shall be at the rate of one penny per linear foot.

5. Where, in the case of any exposed cinematograph film, it is shown to the satisfaction of the Commissioners—

- (a) that customs duty was paid on the film at the rate of fivepence per linear foot;
- (b) that no duplicate has been made in the United Kingdom or the Isle of Man from the film or from any part thereof; and

2ND SCH.
—cont.

- (c) that no duplicate of the film or of any part thereof has been imported into the United Kingdom or the Isle of Man;

there shall, if the film has been destroyed or otherwise disposed of to the satisfaction of the Commissioners, be allowed a rebate at the rate of fourpence per linear foot.

6. For the purposes of this Part of this Schedule—

- (a) all sheets or strips of unexposed sensitised film which are of a length not less than twelve feet shall, whatever their width, be treated as cinematograph film;
- (b) references to exposed cinematograph film shall include references to all such film whether it is positive or negative, whether it is developed or undeveloped and whether or not it contains or consists of sound track;
- (c) two lengths of exposed cinematograph film representing the same objects shall not be deemed not to be duplicates of each other by reason that one is positive and the other is negative, or by reason that the objects are represented on different scales and the dimensions of the lengths of film are correspondingly different, or, where both lengths are intended for use in the production of a coloured picture, by reason of any differences ascribable to the nature of the processes involved in producing such a picture.

Section 4.

THIRD SCHEDULE.

DUTIES ON CERTAIN PRESERVED FRUITS.

Description of fruit.	Rate of duty.
The following fruit salad preserved in syrup, that is to say, mixtures of fruit (but not including mixed fruit pulp) containing not less than four separate descriptions of fruit, in which each of at least four descriptions constitutes at least eight per cent. and no one description represents more than fifty per cent., by weight, of all the fruit in the mixture (excluding syrup) -	
Loganberries preserved in syrup	5s. 6d. per cwt.
Pineapples preserved in syrup	4s. 0d. per cwt.
	5s. 0d. per cwt.

FOURTH SCHEDULE.

Section 6.

ENACTMENTS REPEALED.

Session and chapter.	Short title.	Extent of repeal.
22 & 23 Geo. 5. c. 16 -	The Isle of Man (Customs) Act, 1932.	Section nineteen and the Third Schedule.
24 & 25 Geo. 5. c. 46 -	The Isle of Man (Customs) Act, 1934.	In subsection (1) of section three, the words from "if the aggregate" to the end of the subsection.

Printed by EYRE AND SPOTTISWOODE LIMITED

FOR

SIR WILLIAM RICHARD CODLING, C.B., C.V.O., C.B.E., the King's Printer of
Acts of Parliament

CH. 53.

*Isle of Man (Customs)
Act, 1939.*

2 & 3 GEO. 6.

To be purchased directly from H.M. STATIONERY OFFICE at the following addresses:
York House, Kingsway, London, W.C.2; 120 George Street, Edinburgh 2;
26 York Street, Manchester 1; 1 St. Andrew's Crescent, Cardiff;
80 Chichester Street, Belfast;
or through any bookseller

Price 2d. net